

26STCV14579 26STCV14579

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C9%2C08%2F21%2F2026

Source SHA-256: 638a2bfd594cf85785ee63d41d840f740addbe9a2322cb863a6a8e894fe3672f

Case Number: 26STCV14579 Hearing Date: August 21, 2026 Dept: 9

The Court hereby

distributes a tentative ruling for the Case Management Order. The parties are welcome to provide input and propose modification(s) to any aspect of the CMO at the Initial Status

Conference. If all parties submit on the

tentative CMO prior to the commencement of the August 21, 2026 ISC, the Court

will adopt the tentative CMO, and the parties need not appear. However, if there is any matter that any

party would like to discuss, including any proposed change to this tentative

CMO, that party should not submit on this tentative but instead appear at the

ISC to raise the issue. To avoid a

failure to appear, please make sure to check in with Department 9 court staff

and wait for the case to be called unless you receive notification that all

parties have submitted on the tentative CMO.

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES

JOHN

BARRERO vs DLIVRD TECHNOLOGIES INC. D/B/A EXPEDITE, 26STCV14579

[TENTATIVE]

CASE MANAGEMENT ORDER

This action has been designated as

complex pursuant to CRC 3.400(a), and thus requires exceptional judicial

management. All provisions of this CMO are deemed necessary to carry out the

purposes of Rule 3.400(a), and to promote effective decision-making by the Court. They are based upon individual consideration of this complex action, including the Status Conference Reports previously filed by the parties.

1.

Mediation: The

parties are ordered to meet and confer regarding their willingness to participate in private mediation, and if agreeable to all parties, the parties may schedule a mediation. The parties are further ordered to file a Joint Status Report Re: Mediation Efforts, including whether the Parties have agreed to mediate, the identity of any mediator they may have selected, and the date of any mediation they may have scheduled, by no later than September 21, 2026. A Non-Appearance Case Review Re Mediation Efforts is set for September 28, 2026 at 8:30 AM, Department 9. If the parties agree to a voluntary, informal exchange of discovery prior to mediating, the Court encourages (but does not require or order) the parties to include a custodian's declaration with each production of discovery so that if the mediation is unsuccessful, the parties will have declarations to authenticate the documents already produced.

2.

Applicable Arbitration Agreement(s): In the Joint Initial Status Conference Report, the parties indicate that Plaintiff did not sign an agreement containing an arbitration clause, but some of the putative class members and individuals in the PAGA group may have done so.

The

parties are ordered to meet and confer regarding their respective proposals as to how the Court may best manage this issue, including the possibility of sequencing discovery and litigation in a way that most effectively and efficiently addresses this issue, or any other proposal that the parties may have. In their meet and confer efforts, the Court encourages the parties to review the Court of Appeal's decisions in *Henderson v. Ready to Roll Transportation, Inc.* (2014) 228 Cal. App. 4th 1213, 1223 and *Sky Sports, Inc. v. Superior Ct.* (2011) 201 Cal. App. 4th 1363, 1369.

After the parties' meet and confer efforts, the parties must file a joint statement with either a joint proposal or the parties' respective proposals as to the best manner for structuring discovery and litigation of this issue. The parties are ordered to file and serve the Joint Statement by no later than March 1, 2027 and to appear for a status conference to address this issue on March 8, 2027 at

10 am.

3.

Defendant's Responsive Pleading: The Court hereby lifts the stay to permit Defendant to file and serve a Responsive Pleading to the operative Complaint. Defendant must file and serve a Responsive Pleading by no later than September 21, 2026.

Before filing any motion, the moving party must contact the Court Staff in Department 9 when ready to file the moving papers to obtain a hearing date and a briefing schedule. The Court sets a Non-Appearance Case Review Re: Filing and Serving of Defendant's Responsive Pleading for September 28, 2026, 8:30 AM, Department 9.

4.

Phased Discovery. Discovery shall be phased. Discovery will be phased with the stay lifted once Defendant files and serves an answer or, if applicable, after the Court rules on any pleading challenge. At that time, the Court will permit class certification discovery only. Merits-based discovery will be allowed only after the Court rules on Plaintiff's anticipated class certification motion. If there is a dispute concerning whether a given discovery request is certification or merits-based, the parties are to request an informal discovery conference through CaseAnywhere or other electronic bulletin. If the parties schedule a mediation to occur by February 21, 2027 and if the parties wish to extend the stay on formal discovery beyond Defendant's filing of an answer, the parties may file a stipulation and proposed order extending the stay on formal discovery until completion of mediation, and the Court will likely approve such stipulation.

5.

Class list discovery.

The decision in *In Re Insurance Installment Fee cases* (2012) 211 Cal.App.4th 1395, 1426-1429, held that the notice procedure prescribed by the trial court and followed by the defendant was necessary to protect privacy rights under the California Constitution.

Therefore, upon the Court's lifting of the stay on class certification discovery, the parties shall use the procedure described in *Belaire-West Landscape v Superior Court* (2008) 149 Cal.App.4th 554 to notify putative class members, as described in the applicable paragraph of the currently

operative complaint, giving them the opportunity to opt out. The parties must share the cost of the procedure equally.

a. Plaintiff

is to take the lead and prepare a proposed letter to be sent out by the agreed-upon third party administrator.

The parties must discuss and settle upon a final version.

b. The

letter must be written using the administrator's letterhead, not that of any party.

c. The

defense must turn over the contact information consisting of name, address, phone number, and email address (if available) to the third-party administrator.

d. In the

event the putative class list is greater than 400 people, the administrator must randomly select a sample of no more than 400. The contact information for those persons who did not opt out must be turned over to the plaintiff.

6.

Payroll Records Discovery. Responses to any payroll record discovery requests must be uniquely numbered and redacted so that putative class member's identifying information, i.e., name, social security numbers, etc. are not revealed.

7.

Protective Order.

Parties are alerted that model protective orders may be found at Los

Angeles Superior Court website at <http://www.lacourt.org/division/civil/CI0043.aspx>. The parties are encouraged to use these model

orders as shown, or if modified, as a template for the modified order. A redlined courtesy copy must be posted on the e-service bulletin board and lodged with the court at the time of filing.

The parties must use the redlined version to identify any changes proposed to the model order.

8.

E-service & E-filing. Electronic service is not the same as

electronic filing. The parties have agreed, and the Court has signed an order authorizing Case Anywhere as the e-service to be used in this case. Argument must not be posted on the bulletin board. For information on electronic filing in the Complex Courts, please refer to <https://www.lacourt.org/division/efiling/efiling2.aspx> and <http://www.lacourt.org/division/efiling/pdf/ComplexefilingFAQs.pdf>.

a. The parties should be aware that if they submit a proposed order, then if and when the Court approves the order, the final signed order will be electronically returned to the Electronic Filing Service Provider (EFSP). After lodging a proposed order, the parties must frequently monitor and check with their EFSP because the final, signed order will not be automatically uploaded to CaseAnywhere or any other electronic bulletin board.

9. Hearing Dates and Briefing Schedule for Motions: Department 9 does not use the Los Angeles Superior Court online Court Reservation System (CRS) to set motion hearing dates. To request a hearing date and briefing schedule for any and all motions (other than motions in limine), the moving party must call the Court Staff in Department 9 when ready to file the moving papers. The first page of the Notice of Motion must clearly set forth the hearing date and briefing schedule obtained from the Court. Failure to file and serve moving papers within 1 court day of obtaining the briefing schedule and hearing date may result in the Court vacating the hearing date. At the trial setting conference, the Court will specially set a briefing schedule for all motions in limine, which are generally heard at the Final Status Conference.

10. Class Certification Motion. The Court hereby sets the deadline for Plaintiff to file and serve any Motion for Class Certification as August 23, 2027. Plaintiff is reminded that Plaintiff's brief must contain a trial plan. The trial plan MUST be filed as a separate brief. The Court sets a Non-Appearance Case Review for August 30, 2027, 8:30 AM, Department 9.

11. Discovery conferences. Participation in an informal discovery conference is not a prerequisite to filing a motion to compel further or other

discovery motion in Department 9.

However, the Court strongly encourages informal discovery conferences as a more efficient and cost effective alternative to resolve discovery disputes without unnecessary motion practice. The Court will likely consider the parties' voluntary participation in an informal discovery conference or other similar efforts when subsequently assessing a party's request for discovery sanctions.

Any party may post a message on the electronic bulletin board to request an informal discovery conference. The Court will either reply to the message or issue a minute order setting the conference. A party's request for or voluntary participation in an informal discovery conference does not extend the deadline to file and serve a timely motion to compel further responses. If the parties wish, they may negotiate and stipulate to a mutually agreeable extension in writing. Because informal discovery conferences are informal, no court reporter or audio recording is permitted.

12.

Potential Related Cases. As soon as Counsel become aware of any potentially related case(s), including any class action involving overlapping claims or any PAGA case involving the same representative plaintiff, Counsel are ordered to file and serve a Notice of Related Case in the instant case and in the potentially related case(s) pursuant California Rule of court Rule 3.300. This is a continuing obligation on both Plaintiffs and Defendants while this case is pending.

13.

Settlement.

File a Notice of Settlement on Judicial Council form CM-200, a mandatory form.

a. Consider using the form wage and hour

settlement agreements now available on the court's website at <https://www.lacourt.org/forms/all> – "Civil Forms" section.

With input and unanimous consensus from an Ad Hoc Wage and Hour

Committee, the court posted: (1) a form class action settlement

agreement, (2) a form class action/PAGA settlement

agreement, (3) and a form PAGA settlement agreement. Using these

forms should cut down on attorney negotiation time and reduce the lag time

between a successful mediation and execution of a long form agreement. Filing a motion that is based on a form agreement and includes a redlined copy identifying modifications will also

expedite the court's review process and help reduce the current backlog on

hearings.

b. If settlement includes dismissal of class action claims (such as a PAGA only settlement or an individual settlement), then Plaintiff must comply with CRC 3.769 and 3.770 in order to obtain dismissal of class claims. Do NOT use Judicial Council Form Civ-110, Request for Dismissal.

Plaintiff is ordered to download (1) the instant signed order from the Court's website, (2) the minute order for today, and (3) the signed order authorizing electronic service provider, to give formal notice of each of these to all other parties, and to file proof of service of such within five (5) days.

IT IS SO ORDERED.

DATED: August 21, 2026

ELAINE
LU

Judge
of the Superior Court